

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2021

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

Maria Morgan.....	Movant	)	
		)	
	VERSUS	)	MOTION TO FOR
		)	NEW TRIAL
Republic of Liberia	Respondent	)	
		)	
	<u>GROWING OUT OF THE CASE:</u>	)	
		)	
Maria Morgan.....	Appellant	)	
		)	
	VERSUS	)	APPEAL
		)	
Republic of Liberia.....	Appellee	)	
		)	
	<u>GROWING OUT OF THE CASE:</u>	)	
		)	
Republic of Liberia	Plaintiff	)	
		)	CRIME:
	VERSUS	)	TRAFFICKING IN PERSON
		)	
Maria Morgan, Edwin Walker and Ernest Urey		)	
.....	Defendants	)	

Heard: November 3, 2021

Decided: February 1, 2022

On December 14, 2018, the grand jury for Montserrado County presented an indictment against Maria Morgan, the movant herein, and two other Co-Defendants, Edwin Walker and Ernest Urey, for the crime of trafficking in persons. A bench trial was conducted and on October 23, 2020, the trial judge acquitted Co-defendants Edwin Walker and Ernest Urey but convicted the movant for trafficking in persons.

The movant announced an appeal from the final judgment of the trial court and on November 2, 2020, she filed her bill of exceptions, and subsequently on December 15, 2020, served and filed her notice of completion of the appeal in consonance with Section 24.9 of the Criminal Procedure Law which states thus:

“...on application of the appellant, the clerk shall thereupon issue a notice of the completion of the appeal, one copy of which shall be served by the appellant on the appellee, and another copy of which shall be filed with the clerk of the Supreme Court. The original of such notice shall be filed in the office of the clerk of the trial court.”

Thereafter, on December 17, 2020, the movant filed a motion for new trial on newly discovered evidence before the trial court and amended same on December 22, 2020. On January 15, 2021, the movant withdrew the amended motion from before the trial court and on May 24, 2021 the movant filed the present motion for new trial on newly discovered evidence, before the Honorable Supreme Court relying on Section 22.1(3) of the Criminal Procedure Law as the basis for this Court to hear the motion and order the trial court to grant a new trial. Section 22.1(3) of the Criminal Procedure Law upon states as follows:

“...a motion for new trial on the ground of newly discovered evidence may be made at any time after the verdict or finding of guilty. If an appeal is pending, the motion shall be made before the appellate court. A motion for new trial on any other ground shall be made within four days after the verdict.”

The State, the respondent herein, filed a resistance to the present motion praying for its dismissal, asserting that the movant had previously filed same at the trial court and voluntarily withdrew the said motion. In passing upon this resistance by the State, we note that the withdrawn amended motion for new trial on newly discovered evidence that was filed before the trial court on December 22, 2020, was outside the pale of the law, as the records show that same was filed after the movant had already filed her bill of exceptions on November 2, 2020 and her service and filing of notice of completion of appeal on December 15, 2020, thus effectively removing the matter from the jurisdiction of the trial court. Thus, by the filing of the present motion before the Supreme Court, renders the issue of the filing before the trial court moot, and we so hold.

The State also raised other issues in its resistance, a review of which this Court has determined are not relevant to the issue at bar, that is, they do not prove or disprove the averments in the motion for new trial on newly discovered evidence. Civil Procedure law, Rev. Code 1:25.4; *Kpoto v Williams*, Supreme Court Opinion, March Term (2008); *Massaquoi and Gibson v Dennis*, 40 LLR 698, 704 (2001); *Weah v Republic of Liberia*, 35 LLR 567, 581 (1998).

Now, having carefully examined the motion for new trial, the resistance thereto and listened to the arguments on both sides, this Court says the hearing of the present motion is one of first instance in our jurisprudence since a motion for new trial in criminal cases on any other ground other than on newly discovered evidence is cognizable only before the trial court and not the Supreme Court, pursuant to Sections 22.1(1) and 22.1(2) of the Criminal Procedure Law which provides that: “...within four (4) days after a verdict has been rendered against the defendant, the court on motion of the defendant may grant a new trial on grounds that:

- (a) That the jurors decided the verdict by lot or by any other means than a fair expression of opinion on the part of all the jurors;
- (b) That the jury received evidence out of court other than that resulting from a view of the premises;
- (c) That a juror has been guilty of misconduct;

- (d) That the prosecuting attorney has been guilty of misconduct;
- (e) That the verdict is contrary to the weight of the evidence;
- (f) That the court erred in the decision of any matter of law arising during the course of the trial;
- (g) That the court misdirected the jury on a matter of law or refused to give a proper instruction which was requested by the defendant;
- (h) That new and material evidence has been discovered which if introduced at the trial would probably have changed the verdict or finding of the court and which the defendant could not with reasonable diligence have discovered and produced upon the trial;
- (i) That for any cause not due to his own fault, the defendant has not received a fair and impartial trial."

With regards the filing of said motion before the Supreme Court, section 22.1(3) of the same Law reads as follows:

"....a motion for a new trial on the ground of newly discovered evidence may be made at any time after a verdict or finding of guilty.
If an appeal is pending, the motion shall be made before the appellate court..." (our emphasis)

Given the expressed provision of Section 22.1(3) of the Criminal Procedure Law this Court says that a motion for new trial on grounds of newly discovered evidence is cognizable before the Supreme Court it being the only appellate court in this jurisdiction before which appeals or other motions and motions like the present one emanating from a circuit court are filed. Also, this Court interprets the provision of the statute as affording a defendant in a criminal case, a second chance to submit evidence not in the defendant's possession or knowledge during trial on the Constitutional right of presumption of innocence before being proven guilty.

Ordinarily, the Supreme Court is authorized by law to exercise jurisdiction over motions as filed before it, i.e., motion to dismiss an appeal, motion for diminution of records, motion for recusal, etc., as motions are strictly based on the law and not on factual issues. Therefore, by the same standard, this Court is seized of the present motion and can make a determination thereon.

We note from the above quoted of Sections 22.1(3) and 22.1(2) of the Criminal Procedure Law, in our criminal proceedings, a motion for new trial in the Supreme Court can only be granted on the ground of newly discovered evidence and that sub-section 22.1(h) thereof sets forth the only condition by which a motion for new trial on newly discovered evidence may be granted.

The Court has reviewed the motion papers presented by the movant as newly discovered evidence and observes that same are records received by the movant from a foreign jurisdiction after the trial in the lower court was concluded. The said foreign records are to prove fact that the persons allegedly trafficked were adopted both under Liberian Law and the Laws of the United States of America with the knowledge and consent of their biological parents. Also, the documents show a

ruling by the foreign court in favor of the alleged trafficked persons to receive inheritance from their late adoptive father.

In fact, in its resistance to the motion, the State quoted excerpts from the ruling of the trial judge wherein she stated that, "The document that Co-Defendant Maria Morgan depended on to vindicate herself is either lodged in the archives of the Supreme Court or the U.S Embassy, two power playing institutions that this court cannot reach by law."

The State also quoted the following from the trial judge's as regards the contention between the present movant and the State, to wit:

"...Both the private prosecutrix presented that they did not know anything about the adoption; the hidden testimony of Co-defendant Edwin Walker seems to answer the true story, that is to say the two children were adopted by the mothers agreeing for them to sign a relinquishment for the adoption. The only bone of contention is that the organization promised as was seen in the testimonies of both defendants Morgan and Urey that they would from time to time provide information about the welfare and wellbeing of the children..."

As earlier stated, the only condition for the granting of a motion for new trial on newly discovered evidence is provided for in sub-section 22.1(h) of the criminal Procedure Law which states as follows, to wit:

"...That new and material evidence has been discovered which if introduced at the trial would probably have changed the verdict or finding of the court and which the defendant could not with reasonable diligence have discovered and produced upon the trial";

The question this Court has to answer now is whether or not the evidence as produce by the movant in her motion, meets the requirement of the law to be considered as newly discovered evidence to be granted a new trial. We say no!

The records confirm that the movant and her organization did not just discover the documents but already had knowledge of their existence although not within their physical possession. Moreover the adoption emanates from the country where the person(s) to be adopted resides, hence, those documents were available in this jurisdiction

We hold therefore that the movant although having received the foreign documents after the conclusion of the trial, she already had knowledge of their existence and from all indication had sent for the said documents to prove that the persons allegedly trafficked by her were adopted. Accordingly, the said documents do not qualify as newly discovered evidence.

WHEREFORE AND IN VIEW OF THE FOREGOING, the motion for new trial on newly discovered evidence is hereby dismissed and denied. The Clerk of this

Court is ordered to have the appeal docketed to be heard at the next term of this Court, being the March Term A.D. 2022. AND IT IS HEREBY SO ORDERED.

Motion denied

When this case was called for hearing, Counsellor Jurah A. Lynch appeared for the movant. Counsellor Wesseh A. Wesseh, Assistant Minister, Ministry of Justice appeared for the respondent.